

#	Case Name	Tentative
50	Alliance Funding Group v. Yang Noodle House, Inc., et al. 30-2024-01373426	Plaintiff Alliance Funding Group's unopposed motion to vacate dismissal is granted. <u>Relevant Background</u> On January 16, 2025, Plaintiff filed a notice of settlement of entire case. (ROA 45.) The court set a hearing on an order to show cause re: dismissal on a settled case, which was continued several times. (See 1/17/2025 Minute Order; 2/10/2025 Minute Order; 9/19/2025 Minute Order [ROA 48, 51, 56].) At the February 6, 2026 hearing, the court noted that Plaintiff did not file a request for dismissal prior to the hearing, did not appear at the hearing, and did not show good cause as to why the action should not be dismissed. Accordingly, the court dismissed the case with prejudice. (2/6/2026 Minute Order; Order After Hearing [ROA 58 & 59].) <u>Merits</u> Plaintiff seeks to vacate the February 6, 2026 dismissal of this action. Code of Civil Procedure section 473, subdivision (b) provides in relevant part: the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. Plaintiff has submitted its counsel's declaration as to her mistake in failing to appear at the hearing as required by the court. (Adams Decl., at ¶¶ 3-4.) The relief requested is mandatory. No opposition was timely filed. The motion for relief is therefore granted. The February 6, 2026 dismissal is hereby vacated. The court sets a hearing on an order to show cause re: dismissal on a settled case for October 9, 2026, at 9 am in this Department. Plaintiff shall give notice of the ruling and of the hearing on the OSC re: dismissal on a settled case.

51	Arashfar v. Trieu 30-2026-01544986	Hearing on motion to transfer case off-calendar per 5/13/2026 Order.
52	Flores-Garcia v. Nissan North America, Inc. 30-2024-01435508	Defendant Nissan North America, Inc.'s motion to compel Plaintiff Jorge I. Flores-Garcia to provide further deposition testimony and to produce additional documents, is granted in part and denied in part. The motion is granted as to further deposition testimony and denied as to production of documents. Code of Civil Procedure section 2025.480, subdivision (a) states: "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." A deponent who has objected to a question and refused to answer bears the burden of justifying such refusal on the motion to compel. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:814; see <i>San Diego Professional Assn. v. Superior Court of San Diego County</i> (1962) 58 Cal.2d 194, 199 ["The burden of establishing that a particular matter is privileged is on the party asserting that privilege."].) Contrary to Plaintiff's assertion, the motion does not ask for an open-ended further deposition. Instead, Defendant only seeks "deposition testimony related to questions in which testimony was withheld." (Not., at p. 1:24-26.) At the deposition, Plaintiff's attorney instructed Plaintiff not to answer the following questions: 1) What is this document? (Do Decl., Exh. B, at p. 17:13.) 2) When was the first time that you saw this document? (Do Decl., Exh. B, at p. 18:9-10.) 3) Did you write this letter? (Do Decl., Exh. B, at p. 18:17.) 4) Have you seen this document before? (Do Decl., Exh. B, at p. 33:18.) 5) Do you see that? (Do Decl., Exh. B, at p. 34:8-9.) (See also, Sep. Stmt.) Plaintiff's counsel objected to these questions on the basis of attorney-client privilege. Plaintiff's counsel also objected to the first question on the ground that the document speaks for itself. (Do Decl., Exh. B, at pp. 17-18, 33-34.) Plaintiff did not justify his objections to these questions. Specifically, Plaintiff has not shown that any of these questions were seeking responses that would be covered by